IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT – IV

Item No.403
IA/274/ND/2023 IN CP(CAA)91/ND/2022

IN THE MATTER OF:
Shree Durga Home Appliances Private limited … Applicant
With
Summer Cool Home Appliances Limited

Order under Section 230-232 of Companies Act, 2013.

Order delivered on 10.10.2023

CORAM:
MR. MANNI SANKARIAH SHANMUGA SUNDARAM,
HON'BLE MEMBER (JUDICIAL)

MR. RAHUL BHATNAGAR,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant : Mr. Ramesh Chandra & Anirudh Kumar Pandev, Advs.
For the RD : Ms. Niharika Tanwar, Adv.

ORDER

IA/274/ND/2023

This is an application filed under Section 5 of Indian Limitation Act, 1963 read with Section 151, C.P.C., 1908, for condonation of delay in filing second motion petition under Sections 230 and 232 of Companies Act, 2013 read with Companies (Compromises Arrangements and Amalgamations) Rules, 2016 for sanction of the scheme of amalgamation. Heard the submissions made by the Ld. Counsel for the Applicant. Considering the facts and circumstances mentioned in the instant application, the instant application i.e. IA/274/ND/2023 stands **allowed** subject to payment of costs of Rs.10,000/- to be deposited in the "**Bharat Kosh**" within 10 days. Proof of payment of costs be filed before the next date of hearing. Proxy Counsel for the RD is present through video conferencing and submitted that she has nothing to say in this application. No one appeared on behalf of the Income Tax Department.

Let the matter be fixed for hearing on **07.11.2023**.

Sd/-
RAHUL BHATNAGAR
MEMBER (TECHNICAL)

Sd/-
MANNI SANKARIAH SHANMUGA SUNDARAM
MEMBER (JUDICIAL)